

Right to information

Working draft. Not adopted law. Not a legal opinion.

29 September 2026

In plain words

- Ask in writing for any record.
- Answer within 30 days. One 15-day extension, with reasons.
- Only four reasons to refuse. Nothing else counts.
- First 50 pages are free.
- A public log shows every request and how it ended, without names.

Why this draft is here

Members shouldn't have to fight for records about their own Nation. This code makes the answer a matter of rules and deadlines.

1. Purpose

- 1.1 This code is how a member gets a record. It adds to the copies the First Nations Financial Transparency Act already requires under sections 7 and 8.

2. Asking

- 2.1 A member asks in writing, by email or on paper, to the records officer, describing the record. The records officer acknowledges it within 5 days and says if the description is too vague to search.
- 2.2 The records officer gives a written decision within 30 days: release, partial release, or refusal.
- 2.3 One extension of 15 days is allowed if, before day 30, the records officer posts written reasons stating how many records are left to search. A second extension is void.
- 2.4 If there is no decision by the deadline, the request counts as refused the next day, and the member may go straight to the appeal body.
- 2.5 The appeal body orders release or confirms the refusal within 20 days. If it misses day 20, it posts that, and council honoraria stop until an order is posted.
- 2.6 There is no fee for 50 pages or fewer. Above that, the fee may not be more than the cost of copying. The invoice is sent within the same 30 days. The clock pauses only while a fee is unpaid, after the invoice is sent.

3. Reasons to refuse

- 3.1 The records officer may refuse only for these reasons, and must name which one:
- Personal information about another identifiable member, including health and student records.
 - Legal advice protected by solicitor and client privilege.
 - A bid or proposal, until the day the contract is signed. On that day this reason ends.
 - A record whose release would put a person's safety at risk. The officer explains the risk in writing to the appeal body at the same time. The public refusal may leave out the detail that creates the risk.
- 3.2 Any other reason, including embarrassment, an upcoming election, or a direction from someone on council, is void. The officer releases the record within 5 days of the appeal body saying so.
- 3.3 Anyone on council who directs a refusal for a reason not on the list may not handle records requests for 90 days.
- 3.4 Where only part of a record falls under a reason, the rest is released.

4. The log

- 4.1 The records officer keeps a public log of every request: the date asked, the date decided, and the result, with the refusal reason. Requesters are not named.
- 4.2 The log is updated within 2 days of each decision. If it falls more than 5 decisions behind, it must be brought up to date within 2 days of the appeal body saying so, or the appeal body names a new records officer within 10 days.

5. Changing this code

- 5.1 Council must not amend or suspend this code by resolution. A resolution that tries to is void on the day it is signed, and the appeal body posts that within 14 days.
- 5.2 An amendment passes under the constitution, Part 9: a majority of the votes cast are yes, and at least 25 percent of all electors cast a ballot.
- 5.3 An amendment that removes or weakens a protected rule listed in the constitution, Part 8, passes only if at least two thirds of the votes cast are yes and at least 40 percent of all electors cast a ballot.
- 5.4 The electoral officer posts the full proposed text and a plain summary at least 45 days before the vote, sends it to every elector with a known address, and posts the count within 3 days.

6. Review and coming into force

- 6.1 This code comes into force on the day after the electors approve it under the constitution, Part 9. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.
- 6.2 Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.
- 6.3 The appeal body reviews this code every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.

- 6.4 Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.
- 6.5 The records officer keeps the adopted text and its plain summary posted for at least 10 years.

Before members vote

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.